REPUBLIC OF THE PHILIPPINES
DEPARTMENT OF JUSTICE
**OFFICE OF THE PROVINCIAL PROSECUTOR**
BOHOL

**PATRICK SWAYZE**

*Complainant,*

**I.S. No**. 020841

**-versus-**

For: **ESTAFA,** Art 315 (1) (b) under the Revised Penal Code

**EMMA LACIA, GRETA ANGELIA,**

**SHAYLA ACENAS and WAYNE POL**

*Respondents.*

x----------x

# R E S O L U T I O N

This resolves the complaint for Estafa under Article 315, 1 (b) of the Revised Penal Code filed by Patrick Swayze against Emma Lacia, Greta Angelia, Shayla Acenas and Wayne Pol, as evidenced by his complaint-affidavit attached herein as ANNEX "1". The complaint likewise contains documentary evidence such as Hayahay Beach Resort Corporation's Articles of Incorporation attached herein as ANNEX "A"; Lease Contract attached herein as ANNEX "B"; Monthly Statements of Revenues from April 2018 up to July 2018 attached herein as ANNEX "C-1", "C-2", "C-3" and "C-4".

Complainant is the co-owner of Hayahay Beach Resort Corporation ("Corporation" for brevity) together with herein respondents. The corporation owns and manages Hayahay Beach Resort ("Beach Resort" for brevity) located in Doljo, Panglao, Bohol. Complainant financed all the expenses for the incorporation, even the subscriptions of all the other incorporators as well as the construction of the beach resort. Meanwhile, the corporation leases the property on which the resort is situated from one of the respondents, Emma Lacia ("Emma" for brevity).

Moreover, complainant personally financed the construction of a dive center within the beach resort. The revenues of which is to be remitted solely to complainant as agreed with the corporation. From the time Hayahay Resort and dive center started operations around December 2000 up to March 2018, the revenues from the dive center were regularly remitted to complainant within the first week of each month, as agreed. However, the revenues and profits for April 2018 were not remitted to him within the first week of the said month and that the same thing happened for revenues from the dive center for the months of May, June and July of 2018.

Complainant have submitted accessed printouts of the monthly statements of revenues earned by the dive center from April 2018 up to the present as proof of non-remittance. It is indicated in the said documents that the dive center earned net profits during the months of April to July 2018 (net expenses and taxes which were deducted/withheld by the Corporation) which Emma and the other directors of the corporation kept in the sum of at least six million pesos (P6,000,000.00).

On the other hand, respondents counter that the agreement to deliver the profits of the dive center was limited to a period of eight (8) years from the time the dive center started its operations, i.e. from December 2000 up to December 2018 as reflected in a signed Agreement among all the incorporators. Respondents also claim that the amounts received by the Complainant after December 2018 were not profits from the dive center but from the other earnings of the beach resort. They likewise counter that complainant failed to send demands to them prior to the filing of the complaint.

Respondents aver that each of them paid for their respective subscriptions as well as contributed for the expenses of the beach resort's construction. They do not deny that it was complainant who financed the construction of the dive center, hence, the agreement that the profits from the dive center for a period of eight years be remitted to him, evidenced by a written and signed agreement by all the incorporators. Respondents further alleged that the remittance started from December 2000 and ended on December 2018 and that there was indeed remittance during the said agreed period as evidenced by monthly acknowledgment receipts.

Respondents aver that remittances on January, February and March 2018 were not profits of the dive center but were other earnings of the beach resort. They also claim that complainant asked access to the statements of revenues for the dive center sometime in July 2018. Respondents spoke with complainant to inquire as to the purpose of the access and were informed that complainant wanted to know how much remittance is owing to him to which respondents explained that no remittance is due to him as the agreement ended on December 2018. Respondents were informed that complainant felt cheated as it was his personal money that was used to build the dive center and that he shall send a formal demand thereafter but none has been made.

After a careful study of the facts of the case, the undersigned finds that there exists a probable cause to indict the respondents for Estafa with abuse of confidence. The elements of estafa with abuse of confidence are present in this case:

> *(a) that **money**, goods or other personal property is **received by the offender** in trust, or on commission, or for administration, **or under any other obligation involving the duty to make delivery of, or to return the same;***

As admitted by both the complainant and respondents, there exists an agreement between them that revenues from the dive center shall be remitted to the complainant. Hence, pursuant to such agreement, the revenues were received by respondents under the obligation to make delivery of, or to return the same to the complainant.

> *(b) that there **be misappropriation or conversion of such money** or property by the offender or denial on his part of such receipt;*

In proving the element of conversion or misappropriation, a legal presumption of misappropriation arises when the accused fails to deliver the proceeds of the sale or to return the items to be sold and fails to give an account of their whereabouts.[1] In the present case, complainant avers that the respondents did not remit the supposed remittances for the months of April, May, June and July of 2018. Such fact of misappropriation was evidenced by the fact of non-remittance as well as the attached accessed printouts of the monthly statements

[1] *Legaspi v PP*, G.R. No. 225799, October 15, 2018

of revenues earned by the dive center from April 2018 up to the present. The said documents indicate that the dive center earned net profits during the months of April to July 2018 (net expenses and taxes which were deducted/withheld by the Corporation) which Emma and the other directors of the corporation kept in the sum of at least six million pesos (Php 6,000,000.00).

On the other hand, respondents claim that remittances were to be made within a period of eight years pursuant to an agreement. Remittances were claimed to have been made from December 2000 to December 2018, as evidenced by acknowledged monthly receipts. However, respondents' arguments are inconsistent. The period from which remittance is to be made according to their agreement was alleged to be eight (8) years but it was further claimed that remittance started on December 2000 and ended on December 2018, which period is actually for eighteen (18) years.

Another inconsistency is that respondents further alleged that remittances on January, February and March 2018 were not profits of the dive center but were from other earnings of the beach resort. This clearly stands contrary to what was agreed that remittances shall come from the revenues of the dive center and not from other earnings of the beach resort to which complainant also has a just share. This implies then that what was remitted to the complainant in the said months were his share from the beach resort and not his sole interest from the dive center. This is also contrary to the claim that remittances from the dive center were remitted until December 2018 as the said remittances covering January, February and March 2018 were not even revenues from the dive center.

Thus, from these facts, it can be inferred that there indeed was no remittance of the revenues from the dive center by the respondents to the complainant in the months of April, May, June and July, 2018.

*(c) that such* ***misappropriation or conversion*** *or denial* ***is to the prejudice of another****; and*

Complainant by filing this complaint is prejudiced by the non-remittance of what was due to him. Complainant, using his hard earned money, financed the construction of such dive center, hence the agreement that the revenues therefrom shall be remitted solely to

him. This is even supported by the allegation of respondents that the complainant informed them that he felt cheated as it was his personal funds that were used in the construction of the dive center.

*(d) that there is a **demand** made by the offended party on the offender.*

The rule is that demand is not an element of the felony or a condition precedent to the filing of a criminal complaint for estafa. Indeed, the accused may be convicted of the felony under Article 315, paragraph 1(b) of the Revised Penal Code if the prosecution proved misappropriation or conversion by the accused of the money or property subject of the Information. In a prosecution for estafa, demand is not necessary where there is evidence of misappropriation or conversion. However, failure to account upon demand, for funds or property held in trust, is circumstantial evidence of misappropriation.[2]

No specific type of proof is required to show that there was demand. Demand need not even be formal; it may be verbal. The specific word "demand" need not even be used to show that it has indeed been made upon the person charged, since even a mere query as to the whereabouts of the money would be tantamount to a demand.

Complainant's access to the statements of monthly revenues was triggered by his concern on the whereabouts of the supposed remittances. This is even supported by the allegation of respondents that complainant asked access to the statements of revenues for the dive center sometime in July 2018 where respondents spoke with complainant. Respondents were informed of the purpose of the access which was that the complainant wanted to know how much remittance is owing to him.

In Tubb v. People, where the complainant merely verbally inquired about the money entrusted to the accused, the Court held that the query was tantamount to a demand, thus: The law does not require a demand as a condition precedent to the existence of the crime of embezzlement. It so happens only that failure to account, upon demand for funds or property held in trust, is circumstantial

[2] *Cosme Jr. v PP*, G.R. No. 149753, November 27, 2006.

evidence of misappropriation. The same way, however, be established by other proof.[3]

In the present case, although absent any allegation in the complaint-affidavit that the complainant asked for the whereabouts of his money which said query could have been akin to a demand, the same is not necessary as in this case where there is evidence of misappropriation or conversion which are the monthly statements of revenues earned by the dive center. Nonetheless, it was even claimed by the respondents in their counter-affidavit that there was query from the complainant concerning the revenues from the dive center.

In a prosecution for estafa, demand is not necessary where there is evidence of misappropriation or conversion.[4] The said monthly statement of revenues indicate that the dive center earned net profits during the months of April to July 2018 in the sum of at least six million pesos (Php 6,000,000.00). The failure of the respondents to account for the remittances and even deliver them to the complainant as agreed raises the legal presumption of misappropriation. In such case, lack of demand would not even be fatal as it is not necessary in this case.

WHEREFORE, it is respectfully recommended that respondents EMMA LACIA, GRETA ANGELIA, SHAYLA ACENAS and WAYNE POL be indicted to Estafa under Article 315 par. 1 (b) of the Revised Penal Code.

Panglao, Bohol, April 1, 2020.

JOYCE MARIE T. SUMATRA
Assistant Provincial Prosecutor

APPROVED:

KRISSA MAE D. LAPIZ
Provincial Prosecutor

[3] *Corpuz v PP*, G.R. No. 180016, April 29, 2014.
[4] *Cosme v PP, supra 2.*

Copy Furnished:

Patrick Swayze
Kahayag, Poblacion
Panglao, Bohol

Emma Lacia
Doljo, Poblacion
Panglao, Bohol

Greta Angelia
San Juan, Poblacion
Panglao, Bohol

Shayne Acenas
Kahayag, Poblacion
Panglao, Bohol

Wayne Pol
Lasang, Bood
Panglao, Bohol

**PEOPLE OF THE PHILIPPINES**

*Complainant,*

**I.S. No**. 020842

**-versus-** For: **ESTAFA**, Art 315 (1) (b) under the Revised Penal Code

**EMMA LACIA, GRETA ANGELIA,**

**SHAYLA ACENAS and WAYNE POL**

*Accused.*

x----------x

**INFORMATION**

The undersigned Senior Assistant Provincial Prosecutor, upon sworn complaint originally filed by the offended party, accuses Emma Lacia, Greta Angelia, Shayne Acenas and Wayne Pol of the crime of ESTAFA Art 315 (1) (b) under the Revised Penal Code, committed as follows:

> That on or about and during April 2018, in the town of Panglao, province of Bohol, Philippines, within the jurisdiction of this court, the said accused, did then and there willfully, unlawfully and feloniously, with abuse of confidence, failed to remit and misappropriated the money of Patrick Swayze. Pursuant to an agreement, the accused were under the obligation to remit and deliver the revenues of the dive center to Patrick Swayze every first week of each month from the start of its operation. However, revenue for the month of April 2018 amounting to Php 1,900,000.00 was not remitted to him. The accused, once in possession of said amount, willfully, unlawfully and feloniously misappropriated, misapplied and converted the said amount of Php 1,900,000.00 to their own personal use and benefit, to the damage and prejudice of Patrick Swayze, as evidenced by the monthly financial

statements of such year and failure to render account of and deliver the same to him.

CONTRARY TO LAW.

Panglao, Bohol, April 1, 2020.

**Bail Bond Recommended**: Php 30,000.00

JOYCE MARIE T. SUMATRA
Assistant Provincial Prosecutor

APPROVED:

KRISSA MAE D. LAPIZ
Provincial Prosecutor

**CERTIFICATION**

I hereby certify that the foregoing information is filed after a preliminary investigation has been conducted in accordance with law and rules; that there is reasonable ground to believe that the crime charged has been committed and that the accused is probably guilty thereof; that the accused was informed of the complaint and of the evidence submitted against him and that he was informed of the complaint and of the evidence submitted against him and that he was given the opportunity to submit controverting evidence.

JOYCE MARIE T. SUMATRA
Assistant Provincial Prosecutor

SUBSCRIBED AND SWORN to before me this 1st day of April 2020 in Panglao, Bohol, Philippines.

KRISSA MAE D. LAPIZ
Provincial Prosecutor

REPUBLIC OF THE PHILIPPINES
MUNICIPAL CIRCUIT TRIAL COURT
7th JUDICIAL REGION
BRANCH 14
Dauis-Panglao

**PEOPLE OF THE PHILIPPINES**

*Complainant,*

**I.S. No**. 020843

**-versus-** For: **ESTAFA**, Art 315 (1) (b) under the Revised Penal Code

**EMMA LACIA, GRETA ANGELIA,**

**SHAYLA ACENAS and WAYNE POL**

*Accused.*

x----------x

**INFORMATION**

The undersigned Senior Assistant Provincial Prosecutor, upon sworn complaint originally filed by the offended party, accuses Emma Lacia, Greta Angelia, Shayla Acenas and Wayne Pol of the crime of ESTAFA Art 315 (1) (b) under the Revised Penal Code, committed as follows:

> That on or about and during May 2018, in the town of Panglao, province of Bohol, Philippines, within the jurisdiction of this court, the said accused, did then and there willfully, unlawfully and feloniously, with abuse of confidence, failed to remit and misappropriated the money of Patrick Swayze. Pursuant to an agreement, the accused were under the obligation to remit and deliver the revenues of the dive center to Patrick Swayze every first week of each month from the start of its operation. However, revenue for the month of May 2018 amounting to Php 1,700,000.00 was not remitted to him. The accused, once in possession of said amount, willfully, unlawfully and feloniously misappropriated, misapplied and converted the said amount of Php 1,700,000.00 to their own personal use and benefit, to the damage and prejudice of Patrick Swayze, as evidenced by the monthly financial statements of such year and failure to render account of and deliver the same to him.

CONTRARY TO LAW.

Panglao, Bohol, April 1, 2020.

**Bail Bond Recommended**: Php 30,000.00

JOYCE MARIE T. SUMATRA
Assistant Provincial Prosecutor

APPROVED:

KRISSA MAE D. LAPIZ
Provincial Prosecutor

**CERTIFICATION**

I hereby certify that the foregoing information is filed after a preliminary investigation has been conducted in accordance with law and rules; that there is reasonable ground to believe that the crime charged has been committed and that the accused is probably guilty thereof; that the accused was informed of the complaint and of the evidence submitted against him and that he was informed of the complaint and of the evidence submitted against him and that he was given the opportunity to submit controverting evidence.

JOYCE MARIE T. SUMATRA
Assistant Provincial Prosecutor

SUBSCRIBED AND SWORN to before me this 1st day of April 2020 in Panglao, Bohol, Philippines.

KRISSA MAE D. LAPIZ
Provincial Prosecutor

REPUBLIC OF THE PHILIPPINES
MUNICIPAL CIRCUIT TRIAL COURT
7th JUDICIAL REGION
BRANCH 14
Dauis-Panglao

**PEOPLE OF THE PHILIPPINES**

*Complainant,*

**I.S. No**. 020844

**-versus-**

For: **ESTAFA**, Art 315 (1) (b) under the Revised Penal Code

**EMMA LACIA, GRETA ANGELIA,**

**SHAYLA ACENAS and WAYNE POL**

*Accused.*

x----------x

**INFORMATION**

The undersigned Senior Assistant Provincial Prosecutor, upon sworn complaint originally filed by the offended party, accuses Emma Lacia, Greta Angelia, Shayla Acenas and Wayne Pol of the crime of ESTAFA Art 315 (1) (b) under the Revised Penal Code, committed as follows:

> That on or about and during June 2018, in the town of Panglao, province of Bohol, Philippines, within the jurisdiction of this court, the said accused, did then and there willfully, unlawfully and feloniously, with abuse of confidence, failed to remit and misappropriated the money of Patrick Swayze. Pursuant to an agreement, the accused were under the obligation to remit and deliver the revenues of the dive center to Patrick Swayze every first week of each month from the start of its operation. However, revenue for the month of June 2018 amounting to Php 1,300,000.00 was not remitted to him. The accused, once in possession of said amount, willfully, unlawfully and feloniously misappropriated, misapplied and converted the said amount of Php 1,300,000.00 to their own personal use and benefit, to the damage and prejudice of Patrick Swayze, as evidenced by the monthly financial statements of such year and failure to render account of and deliver the same to him.

CONTRARY TO LAW.

Panglao, Bohol, April 1, 2020.

**Bail Bond Recommended**: Php 30,000.00

JOYCE MARIE T. SUMATRA
Assistant Provincial Prosecutor

APPROVED:

KRISSA MAE D. LAPIZ
Provincial Prosecutor

**CERTIFICATION**

I hereby certify that the foregoing information is filed after a preliminary investigation has been conducted in accordance with law and rules; that there is reasonable ground to believe that the crime charged has been committed and that the accused is probably guilty thereof; that the accused was informed of the complaint and of the evidence submitted against him and that he was informed of the complaint and of the evidence submitted against him and that he was given the opportunity to submit controverting evidence.

JOYCE MARIE T. SUMATRA
Assistant Provincial Prosecutor

SUBSCRIBED AND SWORN to before me this 1st day of April 2020 in Panglao, Bohol, Philippines.

KRISSA MAE D. LAPIZ
Provincial Prosecutor

REPUBLIC OF THE PHILIPPINES
MUNICIPAL CIRCUIT TRIAL COURT
7th JUDICIAL REGION
BRANCH 14
Dauis-Panglao

**PEOPLE OF THE PHILIPPINES**

*Complainant,*

**I.S. No**. 020845

**-versus-**

For: **ESTAFA**, Art 315 (1) (b) under the Revised Penal Code

**EMMA LACIA, GRETA ANGELIA,**

**SHAYLA ACENAS and WAYNE POL**

*Accused.*

x----------x

**INFORMATION**

The undersigned Senior Assistant Provincial Prosecutor, upon sworn complaint originally filed by the offended party, accuses Emma Lacia, Greta Angelia, Shayla Acenas and Wayne Pol of the crime of ESTAFA Art 315 (1) (b) under the Revised Penal Code, committed as follows:

> That on or about and during July 2018, in the town of Panglao, province of Bohol, Philippines, within the jurisdiction of this court, the said accused, did then and there willfully, unlawfully and feloniously, with abuse of confidence, failed to remit and misappropriated the money of Patrick Swayze. Pursuant to an agreement, the accused were under the obligation to remit and deliver the revenues of the dive center to Patrick Swayze every first week of each month from the start of its operation. However, revenue for the month of July 2018 amounting to Php 1,100,000.00 was not remitted to him. The accused, once in possession of said amount, willfully, unlawfully and feloniously misappropriated, misapplied and converted the said amount of Php 1,100,000.00 to their own personal use and benefit, to the damage and prejudice of Patrick Swayze, as evidenced by the monthly financial statements of such year and failure to render account of and deliver the same to him.

CONTRARY TO LAW.

Panglao, Bohol, April 1, 2020.

**Bail Bond Recommended**: Php 30,000.00

JOYCE MARIE T. SUMATRA
Assistant Provincial Prosecutor

APPROVED:

KRISSA MAE D. LAPIZ
Provincial Prosecutor

**CERTIFICATION**

I hereby certify that the foregoing information is filed after a preliminary investigation has been conducted in accordance with law and rules; that there is reasonable ground to believe that the crime charged has been committed and that the accused is probably guilty thereof; that the accused was informed of the complaint and of the evidence submitted against him and that he was informed of the complaint and of the evidence submitted against him and that he was given the opportunity to submit controverting evidence.

JOYCE MARIE T. SUMATRA
Assistant Provincial Prosecutor

SUBSCRIBED AND SWORN to before me this 1st day of April 2020 in Panglao, Bohol, Philippines.

KRISSA MAE D. LAPIZ
Provincial Prosecutor

REPUBLIC OF THE PHILIPPINES
DEPARTMENT OF JUSTICE
**OFFICE OF THE PROVINCIAL PROSECUTOR**
BOHOL

**Patrick Swayze**

Complainant,

**-versus-** For: Estafa, Art 315 (1) (b) under the Revised Penal Code

**Emma Lacia, Greta Angelia,**

**Shayla Acenas and Wayne Pol**

Respondents.

x----------x

## COMPLAINT-AFFIDAVIT

## PREFATORY STATEMENT

This is the complaint-affidavit of complainant, **PATRICK SWAYZE**, British, of legal age, single and a resident of Kahayag, Poblacion, Panglao, Bohol. The statements were taken and recorded based on the examination made by Atty. Estelle Marie A. Ocampo, Notary Public for Bohol at the office of the same lawyer on March 23, 2020.

The complainant answered under oath in the English language and had sworn that he understood his statements made here and stands for their veracity. He was made aware that he made these statements under oath and fully conscious that he may face criminal liability for false testimony or perjury.

## PURPOSE(S) OF THE AFFIDAVIT

1. To establish probable cause for the filing of an information for Estafa under Article 315 (1) (b) of the Revised Penal Code (RPC) against Emma Lacia, Greta Angelia, Shayla Acenas and Wayne Pol.

2. To establish the existence of the elements of Estafa with abuse of confidence: (a) that money, goods or other personal property were received by herein respondents under the other obligation to

make delivery of, or to return the same; (b) that there was misappropriation or conversion of such money or property by the offender as supported by evidences attached in this complaint-affidavit; (c) that such misappropriation or conversion or denial was to the prejudice of another; and (d) that despite the element of demand made by the offended party, the same is not necessary as in this case where there is evidence of misappropriation or conversion;

3. To identify and testify on relevant and material documents; and

4. To prove other relevant matters.

## QUESTIONS AND ANSWERS

The following questions and answers were asked and recorded:

**Question 1:** Please state your name, age, civil status, occupation, present address and other personal circumstances.

**Answer 1**: I am PATRICK SWAYZE, British, of legal age, single and a resident of Panglao, Bohol. I work for and am the owner of Hayahay Beach Resort Corporation (Corporation), a corporation duly created and registered under the laws of the Philippines, of only up to forty percent (40%).

**Question 2:** Why are you executing this complaint-affidavit?

**Answer 2**: It is for the purpose of filing an information of estafa against Emma Lacia (EMMA), Greta Angelia, Shayla Acenas and Wayne Pol, who are all residents of Panglao, Bohol.

**Question 3:** Please be reminded that your statement will be under oath and you are required by law to tell the truth, the whole truth, and nothing but the truth, else, you will be subjected to perjury for any false testimony given in this investigation. Do you understand this?

**Answer 3**: Yes, I do.

**Question 4:** How do you know the defendants?

**Answer 4**: I met EMMA sometime during the last quarter of 1999 in Alona Beach Resort in Panglao, Bohol. The other four I met years later. They were friends of EMMA.

**Question 5:** What transpired during your first meeting?

**Answer 5**: EMMA informed me that she has a five thousand square meter (5,000 sqm.) beach-front property in Doljo, Panglao, Bohol. I was enticed to invest in the development of her beach-front property into a resort.

**Question 6:** What happened next?

**Answer 6**: After seeing the property and discovering its proximity to some of the best dive spots in the Philippines, I agreed to invest and develop the beach-front property into the world class resort that it is now, which is the Hayahay Resort.

**Question 7:** What were your agreements regarding the development of the beach resort?

**Answer 7**: We agreed that EMMA's contribution to Hayahay Resort would be the use of her beach front-property which she will lease to the corporation that we decided to incorporate which is the Hayahay Beach Resort Corporation.

**Question 8:** Do you have any proof of this?

**Answer 8**: Yes. A Contract of Lease over the beach-front property was executed between EMMA, with the assistance of her lawyers, and the corporation on September 22, 2000.

**Question 9:** Is this Contract of Lease attached as ANNEX "A" the one you are referring to?

**Answer 9**: Yes.

**Question 10:** How did the corporation come about?

**Answer 10**: It was incorporated by EMMA, Greta, Shayla, Wayne and I but I was actually the one who paid for all the expenses for the incorporation including their subscriptions. I also paid for all the paid-in capital for all the shares subscription of the Corporation including EMMA's sixty percent (60%) interest.

**Question 11:** What was the purpose of the Corporation?

**Answer 11**: To own and manage the Hayahay Beach Resort.

**Question 12:** How much is your interest in the corporation given that you paid for all the expenses for its incorporation?

**Answer 12**: I only own up to forty percent (40%) of the Corporation while the rest of the incorporators own the other sixty percent (60%). I was informed about this hence, being a foreigner, it was reflected in the Articles of Incorporation (AOI) that I only own up to forty percent (40%) of the Corporation.

**Question 13:** I am showing you a copy of Hayahay Beach Corporation's AOI attached as ANNEX "B". Is this the same AOI that you were referring to?

**Answer 13**: Yes.

**Question 14:** Were those the only investments you made for the Corporation?

**Answer 14**: No. I was also the one who paid for all the expenses for the construction of the Hayahay Resort. Also, using my hard-earned money, we put up a dive center at the Hayahay Resort and bought all the necessary equipment for diving and other water activities which may be leased by Hayahay's customers who were into diving and other water sports.

**Question 15:** It seems that you have invested all the capital in this corporation as well as in the beach resort, do you get to have more share in the profits than the rest?

**Answer 15**: Not quite, insofar as my share in the corporation is concerned. But, it was agreed with EMMA and the other incorporators of the Corporation that the revenues and profits from the dive center will belong solely to me since I purchased all the equipment and the facilities of the dive center using my personal funds.

**Question 16:** It seems you have invested all the capital in this corporation as well as in the beach resort, do you get to have more share in the profits than the rest?

**Answer 16**: Not quite, insofar as my share in the corporation is concerned. But, it was agreed with EMMA and the other incorporators of the Corporation that the revenues and profits from the dive center will belong solely to me since I purchased all the equipment and the facilities of the dive center using my personal funds.

**Question 17:** Did you get to receive the revenues and profits from the dive center?

**Answer 17**: Yes. From the time Hayahay Resort and dive center started operations around December 2000 up to March 2018, the revenues from the dive center were regularly remitted to me within the first week of each month. However, the revenues and profits for April 2018 were not remitted to me within the first week of the said month and that the same thing happened for revenues from the dive center for the months of May, June and July of 2018.

**Question 18:** Do you have any proof of this non-remittance?

**Answer 18**: Yes. I have accessed printouts of the monthly statements of revenues earned by the dive center from April 2018 up to the present. It is indicated in the said documents that the dive center earned net profits (net expenses and taxes which were deducted/withheld by the Corporation) which EMMA and the other directors of the corporation kept in the sum of at least six million pesos (P6,000,000).

**Question 19:** I am showing you a copy of Hayahay Beach Corporation's printouts of monthly statements of revenues earned by the dive center attached as ANNEX "C-1", "C-2", "C-3" and "C-4". Are these the same documents that you were referring to?

**Answer 19**: Yes.

AFFIANT FURTHER SAYETH NONE.

**IN WITNESS WHEREOF**, I have hereunto affixed my signature, this 23rd day of March 2020, at Bohol, Philippines.

**PATRICK SWAYZE**
Affiant

## ATTESTATION

I hereby certify that I have personally examined the above named affiant and that the foregoing statements were given by him voluntarily and of his own free will and that he understood him affidavit.

March 23, 2020, Tagbilaran City, Philippines.

**ATTY. ESTELLE MARIE A. OCAMPO**
Notary Public until December 31, 2022
For the City of Tagbilaran & Province of Bohol
Commission No. 11-87 UNTIL 12/31/2022
Roll of Attorney's No. 87643
IBP No. 4407, Cebu City, 01/06/2022
Roll of Attorneys 1234
MCLE Exemption no. III-00827

**SUBSCRIBED AND SWORN** to before me this 23rd day of March, 2020 in Bohol, Philippines. Affiant who is personally known to me further exhibited to me his Driving License No. EH4042017 issued on January 07, 2000 in Bohol, Philippines.

**JOYCE MARIE SUMATRA**

Assistant Provincial Prosecutor
Office of Provincial Prosecutor
Tagbilaran City, Bohol
Commission No. 09-87 UNTIL 12/31/2022
Roll of Attorney's No. 87643
IBP No. 46637, Cebu City, 01/06/2022
MCLE Exemption no. III-00827

Doc. No. 3;
Page No. 5;

Book No. 12;
Series of 2020.

REPUBLIC OF THE PHILIPPINES
DEPARTMENT OF JUSTICE
**OFFICE OF THE PROVINCIAL PROSECUTOR**
BOHOL

**Patrick Swayze**

Complainant,

**-versus-**

For: Estafa, Art 315 (1) (b) under the Revised Penal Code

**Emma Lacia, Greta Angelia,**

**Shayla Acenas and Wayne Pol**

Respondents.

x----------x

**JOINT JUDICIAL COUNTER-AFFIDAVIT**

I. Preliminary Information

Personal Circumstances of the Witnesses:

A. Name: EMMA LACIA
Age: 40 years old
Citizenship: Filipino
Civil Status: Single
Address: Block 6, Lot 59, Bohol Residences, Panglao, Bohol, Philippines

B. Name: GRETA ANGELIA
Age: 45 years old
Citizenship: Filipino
Civil Status: Married
Address: No. 78, Hawaii Street, Grand Residences, Panglao, Bohol

C. Name: SHAYLA ACENAS

Age: 46 years old

Citizenship: Filipino

Civil Status: Married

Address: 13 Kamyas Street, Deca Homes, Panglao, Bohol, Philippines

D. Name: WAYNE POL

Age: 48 years old

Citizenship: Filipino

Civil Status: Married

Address: No. 56, California Street, Grand Residences, Panglao, Bohol

Personal Circumstance of the Lawyer Examining the Witness:

Name: ATTY. MARY JUN OMEGA

Office Address: No. 60 Manros Plaza, Mango Avenue, Panglao, Bohol

Place of Examination: No. 60 Manros Plaza, Mango Avenue, Panglao, Bohol

II. Offer

The Joint Judicial Counter-Affidavit of the Respondents, EMMA LACIA, GRETA ANGELIA, SHAYLA ACENAS, and WAYNE POL, is being offered to prove the following:

1. That the agreement to deliver the profits of the dive center was limited to a period of eight (8) years from the time the dive center was operational, i.e. from December 2000 to December 2018, as reflected in a signed Agreement between the Complainant, PATRICK SWAYZE and the Respondents;

2. That the amounts received by the Complainant after December 2018 were not profits from the dive center but from the other earnings of Hayahay Beach Resort; and

3. That the Complainant failed to send demands to the Respondents prior to the filing of the Complaint to the prosecutor's office.

## PRELIMINARY STATEMENT

This Judicial Affidavit was taken by Atty. Mary Jun B. Omega at her office in No. 60 Manros Plaza, Mango Avenue, Panglao, Bohol, on March 30, 2020. We are answering the questions asked to us by Atty. Omega conscious that we do so under oath, and that we may face criminal liability for false testimony or perjury.

## QUESTIONS AND ANSWERS

1. Why are you here?

Answer: (Emma Lacia answering) We came here to give our joint sworn statement as our counter-affidavit to answer the allegations contained in the complaint.

2. Who is to answer the questions that I will propound?

Answer: (all the Respondents answering) Emma Lacia, attorney.

3. Do you adopt all the answers that Emma Lacia will say?

Answer: (all the Respondents answering) Yes, attorney.

4. Are you aware of the complaint against you?

Answer: Yes. There is a complaint against us for Estafa.

5. How did you know of the said complaint?

Answer: On March 25, 2020, we received an order from the Office of the Provincial Prosecutor dated March 23, 2020 ordering the filing of a counter-affidavit in response to the attached complaint affidavit.

6. Do you know the complainant in this case?

Answer: Yes. He is our co-incorporator in Hayahay Beach Resort Corporation.

7. What is this Hayahay Beach Resort Corporation?

Answer: This is the corporation that we incorporated with the Complainant, wherein I (Emma Lacia) have 20% interest, Greta Angelia has 20%, Shayla Acenas has 10%, Wayne Pol has 10%, and the Complainant has 40% interest.

8. How did the corporation come about?

Answer: I (Emma Lacia) met with the Complainant to tell him about my five thousand square meter (5,000 sqm) beach-front property and to present to him a business plan for a beach resort.

9. Then what happened next, if any?

Answer: He was convinced of the proposal and agreed to incorporate Hayahay Beach Resort Corporation with us. The Complainant paid the expenses for the incorporation and each of us paid for our respective subscriptions.

10. What proof do you have of its incorporation?

Answer: We have our Articles and Certificate of Incorporation.

COUNSEL: Let Annex "B" of the Complaint Affidavit, Articles of Incorporation, be adopted as our Annex "1-A" and the Certificate of Incorporation of Hayahay Beach Resort Corporation be attached as Annex "1-B".

11. After the incorporation, what else happened, if any?

Answer: The construction of Hayahay Beach Resort started, the expenses for which all of us contributed to according to our interest in the corporation.

12. Then, what else happened, if any?

Answer: The Complainant decided to set up a dive center to which we agreed. However, since the resort was only starting up, we could not afford to build the dive center from the funds of the resort. So, the Complainant put up additional investment for it.

13. What happened next, if any?

Answer: We had an agreement that since the dive center expenses were all paid by him, all of its profits for a period of eight (8) years from the time it is operational will be remitted to him.

14. What is your proof of this agreement?

Answer: I have here our written agreement signed by all of us and the Complainant.

COUNSEL: Let this Agreement dated January 1, 2000, signed by Patrick Swayze, Emma Lacia, Greta Angelia, Shayla Acenas, and Wayne Pol, be attached as Annex "2".

15. So the agreement was to remit all the profits of the dive center to the Complainant for a period of 8 years starting at the time the dive center is operational. When was the dive center operational?

Answer: The dive center started being operational sometime on December 2000.

16. When was the remittance supposed to end?

Answer: It should end on December 2018.

17. Was there any remittance made to the Complainant?

Answer: Yes, we made remittance to him from December 2000 to December 2018.

18. What proof do you have of these remittances made?

Answer: We have monthly acknowledgment receipts. Also, the same was admitted by the Complainant in the Complaint Affidavit.

COUNSEL: Let the acknowledgement receipts be attached as Annex "3".

19. It was mentioned in the Complaint Affidavit that there were still remittances on January, February and March 2018, how do you explain these remittances?

Answer: Those remittances were not profits of the dive center, attorney. Those were remittances for other earnings of the Hayahay Beach Resort.

20. What else happened, if any?

Answer: Sometime on July 2018, our accountant told us that the Complainant asked access to our statements of revenues for the dive center.

21. Upon learning that, what did you do, if any?

Answer: We called the Complainant to inquire as to the purpose of the access.

22. What did the Complainant say, if any?

Answer: He said that he wanted to know how much remittance we owed him still. We explained that we did not owe him any more remittance for the dive center as the agreement ended on December 2018.

23. How did the Complainant respond?

Answer: He said that he felt cheated as it was all of his money that was used to build the dive center and that he will send a formal demand from us.

24. Was any such demand received?

Answer: No, attorney. We were shocked when we received the order from the Office of the Provincial Prosecutor.

25. Is there anything else you want to add to your foregoing statements?

Answer: Nothing more for now, attorney.

26. Do you confirm and affirm the truthfulness and correctness of all the narrations contained in this counter-affidavit?

Answer: Yes.

IN WITNESS WHEREOF, I have hereunto set my hand this 30th day of March 2020, at Panglao, Bohol, Philippines.

EMMA LACIA
Affiant
Driver's License No. 12345

SHAYLA ACENAS
Affiant
Driver's License No. 6789

GRETA ANGELIA
Affiant
Driver's License No. 54321

WAYNE POL
Affiant
Driver's License No. 9876

SUBSCRIBED AND SWORN to before me in Panglao, Bohol, Philippines this 30th day of March 2020. I hereby certify that I have personally examined the above named affiants and that I am satisfied that the foregoing JUDICIAL COUNTER-AFFIDAVIT was given by them voluntarily and of their own free will.

Doc No. 10;
Page No. 2;
Book No. 1;
Series of 2020.

ATTY. ANNA ROSE FLORES
Assistant Provincial Prosecutor
Commission Serial No. 4567
Until December 31, 2020
Roll of Attorney 654321
IBP No. 1294/Lifetime
PTR No. 09826/ 06/06/18/ Bohol
MCLE No. VI-0018910
Panglao, Bohol

**ATTESTATION**

I, Mary Jun B. Omega, of legal age, married, Filipino, and with office address at No. 60 Manros Plaza, Mango Avenue, Panglao, Bohol, do hereby certify that:

1. I propounded questions to Emma Lacia, Greta Angelia, Shayla Acenas, and Wayne Pol and faithfully recorded or caused to be

recorded the questions I asked and the corresponding answers that they gave, as above stated; and

2. Neither I nor any other person then present or assisting them coached them regarding their answers.

IN WITNESS WHEREOF, I have hereunto set my hand this 30th day of March 2020, at Panglao, Bohol.

ATTY. MARY JUN B. OMEGA
Administering Officer
Counsel for the Accused
No. 60 Manros Plaza,
Mango Avenue, Panglao, Bohol
Roll of Attorneys No.53180
PTR No.9303370
IBP OR No.023340 / June 13, 2019
MCLE Compliance No. VI-0014400

SUBSCRIBED AND SWORN TO before me at Panglao, Bohol, Philippines, this 30th day of March 2020, by Mary Jun B. Omega, exhibiting to me her IBP identification card.

WITNESS MY HAND AND SEAL this 30th day of March 2020 in Panglao, Bohol

Doc No. 11;
Page No. 3;
Book No. 1;
Series of 2020.

ATTY. ANNA ROSE FLORES
Assistant Provincial Prosecutor
Commission Serial No. 4567
Until December 31, 2020
Roll of Attorney 654321 IBP No. 1294/Lifetime
PTR No. 09826/ 06/06/18/ Bohol
MCLE No. VI-0018910
Panglao, Bohol

Copy Furnished (by personal service):

PATRICK SWAYZE

Complainant

Kahayag, Poblacion,

Panglao, Bohol